

Tentative Rulings for August 25, 2026
Department 403

For any matter where an oral argument is requested and any party to the hearing desires a remote appearance, such request must be timely submitted to and approved by the hearing judge. In this department, the remote appearance will be conducted through Zoom. If approved, please provide the department's clerk a correct email address. (CRC 3.672, Fresno Sup.C. Local Rule 1.1.19)

There are no tentative rulings for the following cases. The hearing will go forward on these matters. If a person is under a court order to appear, he/she must do so. Otherwise, parties should appear unless they have notified the court that they will submit the matter without an appearance. (See California Rules of Court, rule 3.1304(c).) *The above rule also applies to cases listed in this "must appear" section.*

The court has continued the following cases. The deadlines for opposition and reply papers will remain the same as for the original hearing date.

23CECG01378	<i>Cardona v. County of Fresno</i> is continued to Wednesday, August 26, 2026, at 3:30 p.m. in Department 403.
25CECG02879	<i>Fowler Complex, LLC v. Hyde</i> is continued to Tuesday, September 22, 2026, at 3:30 p.m. in Department 403.
25CECG04899	<i>Persevere Lending, Inc. v. Nino</i> is continued to Tuesday, September 22, 2026, at 3:30 p.m. in Department 403.

(Tentative Rulings begin at the next page)

Tentative Rulings for Department 403

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(20)

Tentative Ruling

Re: ***In re Deandre Hill Jr***
Superior Court Case No. 26CU02278

Hearing Date: August 25, 2026 (Dept. 403)

Motion: Petition to Compromise Minor's Claim

Tentative Ruling:

To deny the petition, without prejudice. Petitioner must file an amended petition, and obtain a new hearing date for consideration of the amended petition. (Super. Ct. Fresno County, Local Rules, rule 2.8.4.)

Explanation:

The petition at issue is denied without prejudice due to the following deficiencies.

First, there is no indication whether the settlement is paid by insurance, and if so, the policy limits.

Second, the petition fails to provide a report of the minor's current condition. Paragraph 8 of the petition states, "An original or a photocopy of any doctor's report containing a diagnosis of the claimant's injuries or a prognosis for the claimant's recovery, and a report of the claimant's current condition, must be attached to this petition as Attachment 8. A new report is not necessary if a previous report accurately describes the claimant's current condition." The petition must contain full disclosure of all information that has any bearing on the reasonableness of the settlement. (Cal. Rules of Court, rule 7.950.) Given that the medical records show that the minor was still experiencing pain months after the accident, petitioner shall provide a doctor's report of the her present condition.

Third, counsel provides a declaration supporting the request for attorney fees, but the declaration is exceptionally vague and generic, providing no actual information other than the amount of attorney fees requested. (See Attach. 13a.) Moreover, the retainer agreement provides attorney fees would be divided as follows: 19% percent to Sky Legal, APC; and 81% percent to BD&J, PC. It is unclear if counsel intends to split fees in this manner, and whether Sky Legal performed any legal services on behalf of the minor.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: SMC on August 24, 2026.
(Judge's initials) (Date)

(49)

Tentative Ruling

Re: ***In Re: Steven Antonio Kuripeth***
Superior Court Case No. 25CECG00040

Hearing Date: August 25, 2026 (Dept. 403)

Motion: Petition to Compromise Minor's Claim

Tentative Ruling:

To take off calendar.

Explanation:

On July 15, 2026, Petitioner's motion to consolidate cases for all purposes for Case Nos. 25CECG00038, 25CECG00039, 25CECG00040, and 25CECG00041, with Case No. 25CECG00038 being designated as the master file was granted. Rules of Court, rule 3.350 (c) requires that after a motion to consolidate has been granted that "for all purposes including trial, any subsequent document must be filed only in the lead case." Petitioner is required to file the petition and all other future documents related to Case No. 25CECG00040 in the master file, which is Case No. 25CECG00038. As the petition was filed in the wrong case after consolidation, the matter is taken off calendar.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: SMC on August 24, 2026.
(Judge's initials) (Date)

(48)

Tentative Ruling

Re: ***Bowerman v. Coalinga Regional Medical Center-Rural Health Clinic et al.***

Superior Court Case No. 25CECG01547

Hearing Date: August 25, 2026 (Dept. 403)

Motion: Plaintiff's Motion for Reconsideration

Tentative Ruling:

To deny plaintiff Heidi Bowerman's motion for reconsideration of the court's April 16, 2026 order to set aside the entry of default against defendant Coalinga Medical Center, LLC. (Code Civ. Proc. § 1008.)

Explanation:

Plaintiff Heidi Bowerman ("Plaintiff") is seeking reconsideration pursuant to Code of Civil Procedure section 1008, subdivision (a), of the court's April 16, 2026 Law and Motion Minute Order that adopted the tentative ruling granting defendant Coalinga Medical Center, LLC's ("Defendant's") motion to set aside the entry of default against it.

A motion for reconsideration must be made within ten days of service of the notice of entry of the order. (Code Civ. Proc. § 1008, subd. (a).)

The court deems this motion timely under section 1008. The court has the authority to reconsider its ruling at any time and exercise the means necessary to carry its jurisdiction into effect. (*Le Francois v. Goel* (2005) 35 Cal.4th 1094, 1105; See Code Civ. Proc., § 187.) The service of the minute order at issue was not mailed to Plaintiff's correct address. Proper service of the minute order was effected on April 30, 2026. Plaintiff attempted to file a motion for reconsideration within the 15 day deadline, however, the filing was rejected due to procedural error. The present motion was accepted for filing on June 1, 2026, which is considered herein.

Under Code of Civil Procedure section 1008, subdivision (a), a party moving for reconsideration of a court order must show that there are "new or different facts, circumstances, or law" that justify reconsideration of the order. (Code Civ. Proc., § 1008, subd. (a).) "Case law after the 1992 amendments to section 1008 has relaxed the definition of 'new or different facts,' but it is still necessary that the party seeking that relief offer some fact or circumstance not previously considered by the court." (*New York Times Co. v. Superior Court* (2005) 135 Cal.App.4th 206, 212-213, internal citations omitted.) The requirements of section 1008 are jurisdictional, and failure to comply with the requirement of demonstrating new facts, circumstances or law requires denial of a motion for reconsideration. (*Kerns v. CSE Ins. Group* (2003) 106 Cal.App.4th 368, 391.)

Plaintiff fails to present new or different facts, circumstances, or law in her motion papers that would establish the jurisdictional grounds required for reconsideration. Here,

Plaintiff contends that additional facts were to be presented at oral argument to support her position. However, the instant motion does not present any new facts for the court to consider. Plaintiff argues that Defendant's counsel's failure to appear was a "strategic", "voluntary", and "intentional" decision to cause default to be entered against his client. She then explains this was a "tactical" decision for the purpose of "obtaining evidentiary documents Plaintiff would file during the Request for Judgement". Here, while Plaintiff presents a theory, new facts or evidence are not offered in support. Similarly, Plaintiff does not assert that the grounds for reconsideration of the order is due to new law. Plaintiff only argues that the requirements under Code of Civil Procedure section 473 were misapplied. As such, the court lacks jurisdiction to grant Plaintiff's motion for reconsideration.

"A party seeking reconsideration also must provide a satisfactory explanation for the failure to produce the evidence at an earlier time." (*New York Times Co. v. Superior Court* (2005) 135 Cal.App.4th 206, 212, internal citations omitted.) "Courts have construed section 1008 to require a party filing an application for reconsideration... to show diligence with a satisfactory explanation for not having presented the new or different information earlier." (*Even Zohar Construction & Remodeling, Inc. v. Bellaire Townhouses, LLC* (2015) 61 Cal.4th 830, 839, internal citations omitted.)

Regardless of whether Plaintiff presented new evidence or legal facts, the instant motion must be denied because a satisfactory explanation for why they were not previously presented in opposition of the set aside motion is absent from the instant motion. Plaintiff argues that she was prevented from providing additional facts because she was unable to attend oral argument. However, Plaintiff admits that she failed to request oral argument due to her ignorance of local procedure. Pro per litigants are held to the same standards as attorneys. (*Rappleyea v. Campbell* (1994) 8 Cal.4th 975, 984.) As such, pro per litigants are not entitled to special exemptions from procedural rules. (*Nuno v. California State University, Bakersfield* (2020) 47 Cal.App.5th 799, 812.) Also, the failure to participate in oral argument is not a ground for reconsideration. (*Gilberd v. AC Transit* (1995) 32 Cal.App.4th 1494, 1500 [Order granting reconsideration under section 1008 was reversed where the moving party did not present any facts or authorities relating to the merits of the underlying motion that were not considered by the trial court when it issued its initial orders].)

As there are no new facts, circumstances, or law presented in the motion at bench, the court must deny the motion for reconsideration for lack of jurisdiction.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: SMC on August 24, 2026.
(Judge's initials) (Date)

(46)

Tentative Ruling

Re: **Edward Madec v. State Center Community College District**
Superior Court Case No. 25CECG05517

Hearing Date: August 25, 2026 (Dept. 403)

Motion: Demurrer and Motion to Strike

Tentative Ruling:

To sustain the demurrer to the first and second causes of action in the complaint, without leave to amend.

To deny the motion to strike, as moot.

Explanation:

Plaintiff Edward Madec ("Plaintiff") filed his Complaint against State Center Community College District ("Defendant") on November 25, 2025, raising causes of action for Breach of Contract and Breach of Implied Covenant of Good Faith and Fair Dealing.

Demurrer

Applicable Laws for Demurrers

In determining a demurrer, the court assumes the truth of the facts alleged in the complaint and the reasonable inferences that may be drawn from those facts. (*Miklosy v. Regents of Univ. of Cal.* (2008) 44 Cal.4th 876, 883.) The demurrer does not admit mere contentions, deductions or conclusions of fact or law. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) On demurrer, the court must determine if the factual allegations of the complaint are adequate to state a cause of action under any legal theory. (*Barquis v. Merchants Collection Assn.* (1972) 7 Cal.3d 94, 103.)

On a demurrer, a court's function is limited to testing the legal sufficiency of the complaint. A demurrer is simply not the appropriate procedure for determining the truth of disputed facts. (*Fremont Indemnity Co. v. Fremont General Corp.* (2007) 148 Cal.App.4th 97, 113-114.) It is error to sustain a demurrer where plaintiff "has stated a cause of action under any possible legal theory. In assessing the sufficiency of a demurrer, all material facts pleaded in the complaint and those which arise by reasonable implication are deemed true." (*Bush v. California Conservation Corps* (1982) 136 Cal.App.3d 194, 200.)

A plaintiff is not required to plead evidentiary facts supporting the allegation of ultimate fact; the pleading is adequate if it apprises defendant of the factual basis for plaintiff's claim. (*Perkins v. Superior Court* (1981) 117 Cal.App.3d 1, 6.) Stated another way, a plaintiff is required only to set forth the essential facts of his case with reasonable

precision and with particularity sufficient to acquaint a defendant with the nature, source, and extent of his cause of action. (*Youngman v. Nevada Irrigation Dist.* (1969) 70 Cal.2d 240, 245.)

Breach of Contract

Plaintiff fails to state facts sufficient to constitute a cause of action for breach of contract, and fails to allege whether the purported contract is written, is oral, or is implied by conduct. (Code Civ. Proc., §§ 430.10 subd. (e) and (g).)

To state a cause of action for breach of contract, the complaint must allege (1) the existence of a contract; (2) plaintiff's performance or excuse for nonperformance of the contract; (3) defendant's breach; and (4) resulting damage. (See *State Compensation Insurance Fund v. ReadyLink Healthcare, Inc.* (2020) 50 Cal.App.5th 422, 449.) The contract must be pled verbatim, be attached to the complaint, or be pled according to its legal effect. (See *Construction Protective Services, Inc. v. TIG Specialty Ins. Co.* (2002) 29 Cal.4th 189, 198-199.) In order to plead the legal effect, the plaintiff must allege the substance of the relevant terms. (See *Heritage Pacific Financial, LLC v. Monroy* (2013) 215 Cal.App.4th 972, 993.)

Defendant argues that the Complaint fails to plead the existence of a contract. The Complaint merely alleges that there was an "employment agreement...including the Board Policies and Administrative Regulations[.]" (Compl., ¶ 12.) The employment agreement allegedly provides that Plaintiff would not be discipline[d] or dismissed except for cause. (*Ibid.*) Plaintiff was then terminated after alleged violations of "District, college, and other rules." (*Id.*, ¶ 13.)

The Complaint insufficiently pleads the existence of a contract and/or its essential terms. It is not enough to allege that an employment agreement exists. Here, the only term of the agreement alleged is that Plaintiff would not be disciplined or dismissed except for cause; however, important terms such as "disciplined," "dismissed," and "for cause" are not defined. These terms are relevant to plead the legal effect of the purported contract. Not only has the existence of the contract not been established, but the terms as pled do not sufficiently allege plaintiff's performance and defendant's breach, which are necessary elements to this cause of action. Further, Plaintiff has not alleged whether the purported contract is written, is oral, or is implied by conduct.

Plaintiff fails to state facts sufficient to constitute a cause of action for breach of contract. As the existence of an enforceable contract has not been established, the second cause of action for breach of implied covenant of good faith and fair dealing based on the purported contract also fails.

Tolling of Time Limitations

Plaintiff argues that the time to present his claim pursuant to the Government Claims Act and the statutory time to file his motion were tolled due to the administrative proceedings that were held.

Statute of Limitations

The statute of limitations for breach of oral contracts is two years, and four years for breach of written contracts. (See Code Civ. Proc., §§ 337, 339.) As discussed above, the Complaint does not sufficiently allege a breach of contract, but even if it did, the Complaint does not allege the “date of accrual” of his claims. Plaintiff alleges that he was terminated from employment on October 6, 2020; his pay and benefits were terminated on November 30, 2020; and his pay and benefits were reinstated March 31, 2022. (Compl., ¶¶ 13-14.) Presuming at least one of the dates of Plaintiff’s termination (i.e. the alleged “breach”) establishes the date of accrual, the date the Complaint was filed would fall outside the statute of limitations for a breach of contract action based on either date. As it appears on the face of the Complaint, the action was untimely filed.

Plaintiff’s opposition does not purport to correct this facial defect, and instead focuses on equitable tolling of the statute of limitations due to the pursuit of administrative proceedings. However, while equitable tolling may be allowed in some cases, it is not a blanket application. Plaintiff presents that tolling is available but has failed to argue why the facts of this particular case warrant equitable tolling of the statute of limitations.

Government Claims Act

“No suit for money or damages may be brought against a public entity on a cause of action for which a claim is required to be presented ... until a written claim therefor has been presented to the public entity and has been acted upon by the board, or has been deemed to have been rejected by the board[.]” (Gov. Code, § 945.4; see also Gov. Code, § 905.) A claim relating to a breach of contract must be presented within one year of accrual. (Gov. Code, § 911.2, subd. (a).) “[A] plaintiff must allege facts demonstrating or excusing compliance with the claim presentation requirement.” (*State of California v. Superior Court* (2004) 32 Cal.4th 1234, 1243.) “Otherwise, his complaint is subject to a general demurrer for failure to state facts sufficient to constitute a cause of action.” (*Ibid.*)

Here, the Complaint alleges that “Plaintiff has complied with all applicable claims statutes.” (Compl., ¶ 18.) This is a conclusory statement, and the demurrer does not admit mere contentions, deductions or conclusions of fact or law. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) Defendant submits the “Claim Pursuant to California Government Claims Act”¹ sent from Plaintiff to Defendant on or about July 9, 2025 and received by Defendant on July 14, 2025. Again, while the Complaint does not allege the “date of accrual,” it does allege that Plaintiff was terminated from employment on October 6, 2020; his pay and benefits were terminated on November 30, 2020; and his pay and benefits were reinstated March 31, 2022. (Compl., ¶¶ 13-14.) Plaintiff’s opposition to the present motion does not provide any clarity on when Plaintiff believes his claim accrued. Regardless, the 2025 claim was presented beyond a year from any of these dates.

¹ Defendant’s Request for Judicial Notice may be granted to the extent that it demonstrates that such records exist. (*Steed v. Dept. of Consumer Affairs* (2012) 204 Cal.App.4th 112, 120-121.)

Defendant argues that the Complaint fails to allege the date of any claim presentation nor facts demonstrating its timeliness. The court agrees that these facts do not appear on the face of the Complaint, which supports sustaining the demurrer.

Plaintiff argues that his claim presentation was timely because the time for filing the government claim is tolled when he pursued administrative proceedings. Plaintiff only argues that it is “well established” that time consumed by administrative proceedings are excluded from the period within which a claim must be presented as a prerequisite to a suit. He cites to *Baillargeon v. Department of Water & Power* (1977) 69 Cal.App.3d 670, but fails to demonstrate that it extends to the present breach of contract claim. In *Baillargeon*, the plaintiff’s workers’ compensation case helped ascertain pertinent facts relevant to whether she could reasonably bring her civil action, which made tolling the time to file the civil action practically “necessary.”

Such necessity has not been claimed or demonstrated here. Plaintiff has not offered any other authority to support a finding that the time should be tolled for the length of time necessary to make the claim received by Defendant in July 2025 timely. Plaintiff has failed to demonstrate a cognizable basis for tolling the time to make his claims presentation, postponing accrual, or otherwise excusing timely presentation.

As the failure to timely present a government claim is a defect that cannot be resolved, the court intends to sustain the demurrer without leave to amend.

Claim Preclusion

Defendant acknowledges the applicability of *Busick v. Workmen’s Comp. Appeals Bd.* (1972) 7 Cal.3d 967, whereby a plaintiff is not necessarily precluded from bringing another proceeding to obtain a recovery which was not but is now available to him. Thus, the court will not spend time on this issue, as the demurrer need not be sustained on this basis.

Motion to Strike

In light of the fact that the court intends to sustain the demurrer to the entire Complaint, without leave to amend, the court will deny the motion to strike as moot.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: SMC **on** August 24, 2026.
(Judge's initials) (Date)

(47)

Tentative Ruling

Re: ***Flora Lloyd v. The California Home for the Aged, Inc.***
Case No. 25CECG05647

Hearing Date: August 25, 2026 (Dept. 403)

Motion: Plaintiff's Motion for Preferential Trial Setting

Tentative Ruling:

To grant plaintiff's motion for preferential trial date. The trial shall be set within 120 days of the hearing date for the present motion.

Explanation:

"On petition of any party over 70, [Code of Civil Procedure] section 36, subdivision (a), provides that the granting of calendar preference is mandatory in some circumstances." (*Fox v. Superior Court* (2018) 21 Cal.App.5th 529, 533 ("Fox").)

A court must grant a trial preference under Code Civil Procedure section 36, subdivision (a) where the following two factors are present: (1) the party has a substantial interest in the action as a whole; and (2) the health of the party is such that a preference is necessary to prevent prejudicing the party's interest in the litigation. (*Ibid.*) Where a motion for trial preference is granted, the clerk shall set the case for trial not more than 120 days from that date. (*Koch-Ash v. Superior Court* (1986) 180 Cal.App.3d 689, 694.) The purpose of Code Civil Procedure section 36 is "to avoid an irrevocable loss of a qualifying plaintiff's substantive right to a trial during his or her lifetime and to potential recovery of damages that would not survive plaintiff's pretrial death." (*Ibid.*) A motion for trial preference under subdivision (a) does not require a doctor's declaration and "may be supported by nothing more than an attorney's declaration based upon the information and belief as to the medical diagnosis and prognosis of any party." (*Fox*, *supra*, 21 Cal.App.5th at p. 534, citation omitted [explaining that an attorney declaration under Code Civil Procedure section 36.5 can consist entirely of hearsay and conclusions.]; see also Code Civ. Proc., § 36.5 [affirming that an attorney declaration may form the basis of the motion].)

Plaintiff, Flora Lloyd, ("Lloyd" or "plaintiff") is currently 90 years old, over the qualifying age required under Code of Civil Procedure Section 36. (Kane Decl., ¶16.) The Court finds Lloyd has a substantial interest in the action, where she sustained a head injury and hip fracture, where she is suing defendant as a result of those injuries. (Kane Decl., ¶13.) The Court further finds that Lloyd's overall health is getting worse, where she recently suffered from pneumonia and sepsis (Kane Suppl. Decl., ¶14.), such that a trial preference is necessary to avoid prejudicing her interest in the litigation.

With respect to defendants argument that they will be prejudiced, "[m]ere inconvenience to the court or to other litigants is irrelevant. Failure to complete discovery or other pretrial matters does not affect the absolute substantive right to trial

preference for those litigants who qualify for preference under subdivision (a) of section 36. The trial court has no power to balance the differing interests of opposing litigants in applying the provision. The express legislative mandate for trial preference is a substantive public policy concern which supersedes such considerations." (*Swaithe v. Superior Court* (1989) 212 Cal.App.3d 1082, 1085-1086, internal citations omitted.)

Accordingly, Lloyd's Motion for Trial Preference is granted. Trial is to be set within 120 days of this hearing pursuant to Code of Civil Procedure Section 36, subdivision (f).

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: SMC **on** August 24, 2026.
(Judge's initials) (Date)

(37)

Tentative Ruling

Re: ***Hedrington v. Woolman***
Superior Court Case No. 25CECG01717

Hearing Date: August 25, 2026 (Dept. 403)

Motion: By Plaintiff Orlonzo Hedrington to Set Aside/Vacate Judgment
and for Reconsideration

Tentative Ruling:

To deny.

Explanation:

Plaintiff has filed copious documents since nearly the inception of this case seeking to either vacate a judgment, set aside an order, or reconsider an order. Frequently plaintiff files a proof of service well after filing the corresponding request, if at all. As many of the requests are similar in nature and in title, the court cannot readily discern whether defendants received proper notice as to this hearing.

Similarly, plaintiff frequently indicates either incorrect hearing dates in the caption of his motions or files motions with no hearing scheduled. As such, the court cannot readily discern whether it has reviewed all of plaintiff's intended moving papers for this hearing.

On February 23, 2026, plaintiff filed "Plaintiff's Notice of Motion for Reconsideration Motion Under CCP & 1008 Notice to Motion Vacate a Void Judgment CCP & 473 (D)". The caption indicates a hearing date of July 14, 2026. The court continued the July 14, 2026 hearings to August 25, 2026. It is unclear from this document what relief plaintiff seeks. The document begins by referencing an order, without specifying which order, wherein the court ordered plaintiff to serve and file a proof of service of opposition on the defendants. In carefully reviewing the court's own records, it is apparent this is a reference to an October 8, 2025 ruling continuing defendant's special motion to strike. The motion was continued because plaintiff had filed, but not served, an opposition to the motion. Thus, the court continued the matter to allow for plaintiff to perfect service and gave defendant an opportunity to reply. All that was afforded, to both parties, by this, was assurance of a full opportunity to be heard on the merits.

The remainder of the document filed February 23, 2026 appears to challenge a judgment entered in 2014. While the judgment at issue is not further identified, this matter was not initiated until 2025. Thus, plaintiff appears to challenge a judgment in a different matter than this one. As the court has previously stated, the court will not provide relief for a judgment obtained in a different matter. (Minute Order, August 18, 2026.)

On June 30, 2026, plaintiff filed "Plaintiff's Renewed Application for Expert Witnesses and Opposition to Anti-Slapped Jurisdictional Errors". This too had a hearing date of July 14, 2026 indicated in the caption. Plaintiff cites to Code of Civil Procedure

section 410.70 which articulates that the court has jurisdiction to proceed against defendants who have been served on a contract. It is unclear what plaintiff intends by citing this code section. Plaintiff also asserts he requires immediate expert disclosure so he can show a 2014 proof of service was falsified. Again, this matter did not exist in 2014.

To the extent that plaintiff is challenging this court's ultimate ruling on November 5, 2025, granting defendant Woolman's special motion to strike, the court has already addressed plaintiff's motion to reconsider, vacate judgment, and set aside on July 23, 2026 for this same issue. (Minute Order, July 23, 2026.)

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: SMC **on** August 24, 2026.
(Judge's initials) (Date)